

Parties must appear.

**12. 9:00 AM CASE NUMBER: L25-06376**  
**CASE NAME: JEFFERSON CAPITAL SYSTEMS LLC VS. DARRYL REED**  
**\*HEARING ON MOTION IN RE: FOR JUDGMENT ON THE PLEADINGS**  
**FILED BY: JEFFERSON CAPITAL SYSTEMS LLC**  
**\*TENTATIVE RULING**

Plaintiff filed a Motion for Judgment on the Pleadings on October 17, 2025, with an accompanying Proof of Service. The Motion is unopposed.

#### Background

The Motion for Judgment on the Pleadings is based on the contention that the operative complaint states facts sufficient to constitute a cause of action and the answer does not state facts sufficient to constitute a defense. Defendant, in his Answer filed August 8, 2025, marked the box indicating that all of the statements of the Complaint are true.

#### Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) (“Rutter Civ. Pro.”) § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party’s admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff’s Complaint alleges causes of action for Breach of Contract based on the allegation that Defendant became indebted in the amount of \$2,761.12 on a credit card account.

Defendant’s Answer admits that the statements in the Complaint are true.

#### Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. No costs or fees were specifically alleged, so to the extent that the Plaintiff’s Motion is a request for fees, that is denied without prejudice. Plaintiff can file a subsequent request on this issue.
2. Plaintiff shall file the Order.